

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR COOLEY SUBDIVISION, A REPLAT OF LOTS 8, BLOCK 8, MEADOWBROOKE PARK, CHEYENNE, WYOMING (LOCATED AT THE SOUTHWEST CORNER OF THE INTERSECTION OF BLUEGRASS CIRCLE AND EDGEWATER AVENUE).

WHEREAS, Cooley Construction, LLC, has subdivided said land in accordance with the statutes in such cases made and provided; and

WHEREAS, Cooley Construction, LLC, the owner of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots and block; and

WHEREAS, the above described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the governing body and the plat has been duly executed by the Development Office.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as Cooley Subdivision, a replat of Lot 8, Block 8, Meadowbrooke Park, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat, upon payment of Community Facility Fees.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2013.

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

STAFF REPORT

Cooley Subdivision
Summation

Expedited Subdivision Plat Process

CASE NUMBER(s): UDC-13-00159

FILE CODE: COOL-FPZ

PREPARED BY: Brett Walker

MEETING June 3, 2013 – Planning Commission

DATES: June 24, 2013 – City Council

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Complete Application
- Preliminary Plat Map
- Final Plat Map
- Transportation Worksheet
- Abbreviated Drainage Study

RECOMMENDATION: The Planning and Development office recommends approval of the Expedited Preliminary Plat, advancing the Final Plat to the Governing Body.

STAFF REPORT UPDATE (6/4/2013): At its regular meeting Monday, June 6, 2013, the Cheyenne Planning Commission recommended approval of the above described Expedited Preliminary Plat by a vote of 3 to 0, advancing the Final Plat to the Governing Body.

STAFF REPORT

Cooley Subdivision

Expedited Subdivision Plat Process

CASE NUMBER(s): UDC-13-00159

FILE CODE: COOL-FPZ

PREPARED BY: Brett Walker

MEETING June 3, 2013 – Planning Commission

DATES: June 24, 2013 – City Council

OWNER: Dan Cooley
Cooley Construction, LLC
3347 Hales Ranch Rd.
Cheyenne, WY 82007

AGENT: Dan Cooley
Cooley Construction, LLC
3347 Hales Ranch Rd.
Cheyenne, WY 82007

PROJECT: Cooley Subdivision

WORK DESCRIPTIONS: 4 lots from 1

LOCATION:

- (1) Legal Description: A replat of Lot 8, Block 8, Meadowbrooke Park,
Cheyenne, Wyoming
- (2) Located at the southwest corner of the intersection of Bluegrass Circle and
Edgewater Avenue
- (3) Address: Vacant

SIZE: Total site: 10,803 sqft

CURRENT ZONING: CB Community Business

PROPOSED ZONING: MUB Mixed Use with Business Emphasis

EXISTING LAND USE: Vacant

PROPOSED LAND USE: Residential and Commerical

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Commercial	CB	City
South	Residential	HR-2	City
East	Vacant	HR-2	City
West	Residential	HR-2	City

**EXPEDITED REVIEW:**

This plat is being pursued as an expedited application. An expedited review process is a concurrent preliminary and final plat. A project may be eligible for an expedited review when the proposal contains no significant planning, design and engineering issues. In other words proposals that meet all applicable regulations and generally meet the review criteria for preliminary and final plat may be eligible for the concurrent preliminary and final plat process.

Staff recommends allowing the plat to proceed as an expedited application.

EXECUTIVE SUMMARY:

This proposal is for 4 lots to accommodate a mixed-use development on a 10,803 sqft parcel of land. A zone change request is being pursued with the proposal to accommodate the residential use and more

specifically the lot types to be used for the townhome development. The existing layout of the parcel as a single lot and block, with the current zoning of CB Community Business, could accommodate a number of uses outlined in Table 5-1, UDC, provided all of the design requirements could be met. However, residential uses are not allowed in a CB district.

This is a replat of Lot 8, Block 8, Meadowbrooke Park, which was originally platted in 1981 as part of a 157 acre commercial and residential subdivision located north of the airport and south of Dell Range Boulevard. This is one of the last vacant lots in the subdivision. This particular lot is located on the edge of the residential area within the subdivision and zoned HR-2 (see attached aerial). This area has a mix of multi-family and twinhome development, which would be complemented by this proposal.

The development of this site for mixed-use or multi-family development will require site plan review and approval. Townhomes would require plot plan review

PLAT DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed preliminary plat, the Staff, Planning Commission and City Council shall use the following criteria:

PLANCHEYENNE: *The application is in accordance with the development policies and physical patterns identified in the PlanCheyenne.*

The application is in accordance with the development policies and physical patterns identified in the PlanCheyenne. In general it will provide a mix of housing choices (ref. Foundation 1, PlanCheyenne). The project, again by way of the Greenway, provides opportunities to support bicycle and pedestrian mobility (ref. Foundation 4, PlanCheyenne). The project also promotes elements of fiscally responsible development, such as infill development (ref. Foundation 7, PlanCheyenne).

This proposal contributes to the mix of housing types and appropriately locates higher densities near activity centers with the commercial zoned property to the north which are zoned to accommodate businesses that serve the neighborhood. This site also is within walking distance of a Greenway Connector.

PLANNING. *The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities.*

This infill proposal is a replat of a single vacant lot within a previously platted and completely built-out high-density residential block. The MUB district is intended for higher intensity development to help assure compatibility between adjacent uses, such as between the residential and the commercial uses adjacent to this site. The current proposal will improve the site and its relationship to the public street and water and sewer exist immediately adjacent to the site.

STANDARDS. *Division of land meets the purposes, intent, and all applicable standards in Article 4.*

Community Facility Fees (Park Fees)

Land Acquisition and Infrastructure Fees in the amount of \$250 (minimum fee) will be due before signatures are affixed to the Final Plat map. An additional Residential Enhancement Fee of \$400/ unit and Commercial Enhancement Fee of \$250 will be due at the time of building permit application.

Transportation Networks and Street Designs

This is a replat of a single lot within an existing block. There is no change in the surrounding street network. The block that this replat lies within is under the maximum block perimeter requirements and the surrounding street network is already established, providing a clear picture of the transportation network for this subdivision. This block is located along Bluegrass Circle, classified as a collector street, and Edgewater Ave., classified as a local street. While the streets have been constructed, the street-sections will be required to be built to current design standards and deviations from these standards will require a subdivision standards waiver or adjustment (2.3.1).

Open Space Systems

The Greenway system is accessible within 800' feet of the southeast corner of this plat. Generally, given the context (mixed-use commercial) and zoning (MUB), required open space is 2% of the building footprint for lots less than 2,500 sqft and 5% of the building footprint for lots greater than 2,500 sqft. In this case, in addition to being exempt according to Section 4.4.2.b.1, UDC, this proposal can be described as residential infill development less than 10 acres and exempt according to Section 4.4.2.b.3, UDC, as well.

PHASING: *Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned.*

As the Note 3 on the Final Plat indicates that no phasing is proposed. In general the expectation is the all sidewalks and curb repairs (if needed) will be fully constructed.

STUDIES: *The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts.*

A Transportation Worksheet was submitted pursuant to 3.1.1.c.1, UDC. While no worksheet is required for residential projects proposing 25 dwelling units or less, this project involves the potential for access changes on Bluegrass Circle (a collector). Thus, the worksheet was forwarded to the Traffic Engineer for his consideration. After review, the worksheet was approved and signed.

As the project site is less than 20,000 sqft, an Abbreviated Drainage Study was submitted pursuant to 3.2.1.c.2, UDC, and forwarded to the Drainage Engineer for his consideration. His concerns have been addressed.

ZONING: *All proposed lots shall be buildable lots according to the existing or proposed zoning district standards, and result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district. All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance.*

MUB Lot Standards – The lot and building standards in the MUB district shall be a combination of those allowed in the NR-3 district and the NB district.

Both the Preliminary and Final Plat maps, as well as the Zoning Exhibit Map, indicate the proposed lot types for each lot (listed beneath the square footage).

Lots 1, 3, and 4 indicate AD3/NB Lot Types

SURROUNDING DEVELOPMENT. *The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property.*

This is being replatted in the context of a larger subdivision. The existing facilities relating to commercial activity centers and open space systems should accommodate this proposal.

REVIEWING AGENCY AND REVIEWERS COMMENTS:

Urban Planning: Jim Flesher

Final Plat map shows current zoning as CBD. **NOTE:** *Resolved. Corrected on Revised Map submitted 5/24/13.*

Existing plat shows a utility easement within this property along south property line not shown on submitted plat. If the intent is to vacate it, please indicate it as being vacated and verify no utilities are located in that area. **NOTE:** *Resolved. Corrected on Revised Map submitted 5/24/13.*

Transit: Joe Dougherty

Northeast bus currently serves, hourly nearby at Rue Terre and Edgewater.

Metro Planning Office (MPO): Nancy Olson

Developing this site using the requirements in the MUB district are appropriate at this location for a balanced approach to use of the public ROW with the higher intensity development allowed in the MUB district. Article 6 of the Cheyenne Unified Development Code (Section 6.7, Small Scale Commercial and Mixed Use Design Standards. **NOTE:** *Will be addressed at time of Site Plan or Plot Plan Review.*

GIS/Engineering/Addressing: Gary Stogsdill

Double check city coordinates. 2500' +/- off ?? **NOTE:** *Resolved. Corrected on Revised Map submitted 5/24/13.*

Engineering Department: Mark Escobedo

1. A Transportation Worksheet to determine TIA/TIS requirements was provided as required (ref. Article 3, section 3.1.1.c., UDC). The request for TIS Waiver was signed and dated by Mr. Dan Cooley. The increase in number of trips generated is less than the threshold amount which triggers a TIA or a TIS for the proposed Cooley Subdivision. The waiver request is hereby granted. If development occurs in a manner not in keeping with the land use assumptions contained in the Worksheet for Lot 8, Block 8, Meadowbrooke Park Subdivision, a Transportation Impact Analysis or Study may be required.

2. Driveway spacing, separation and approach type shall be in accordance with the Uniform Development Code Block and Lot Access Standards. **NOTE:** *Resolved. Corrected on Revised Map submitted 5/24/13.*

Development: Brandon Cammarata

The small lot development proposed will follow the townhome lot type (AD3). These small narrow lots have front setback between 10 and 20 feet. **NOTE:** *Will be addressed at time of Site Plan or Plot Plan Review.*

Engineering Department: Jack Studley

1. On the westerly end of the northerly boundary of this plat, the course is recited as N73°06'13"E, 18.67'. This course on the original plat of record for Meadowbrooke Park is actually a curve segment with its chord bearing and distance identical to the recitation as shown on this replat. This boundary segment should be changed to reflect a curve as original shown on the previous plat of record.
2. On the original plat for Meadowbrooke Park, Lot 8, Block 8, there is an 8' utility easement along the southerly boundary. Is it the intent of this replat to vacate that easement?
3. Also, the subject easement extends westerly through Lots 9 and 10, Block 8, and should be shown on this replat for reference.
4. Are all of these proposed lots to acquire utilities off of the street frontage? Or should additional utility easements be provided with this replat?
5. These questions apply to both the PRELIMINARY and FINAL PLAT submittals.

NOTE: *All (1-5) Resolved. Corrected on Revised Map submitted 5/24/13.*

Board of Public Utilities: Linda Gunter

The Board of Public Utilities (BOPU) approval for your request for the Preliminary Plat / Final Plat is approved. The BOPU will need to approve a site plan showing any fire lines and water and san. sewer service lines. All BOPU's fees must be paid before the building permits can be signed off by BOPU for each lot. Water and sanitary sewer utilities need to be designed and constructed in accordance with the latest City of Cheyenne and the Board of Public Utilities Construction Specification Standards and Standard Drawings and the BOPUs latest Rules & Regulations for Establishing Policies & Design Criteria of the Board of Public Utilities Cheyenne, Wyoming.

AGENCIES AND REVIEWERS RESPONDING WITHOUT COMMENTS:

Sanitation, Laramie County Assessor, Engineering Department, Environmental Health Department, Fire Department, Forestry Department, Optimum (formerly Bresnan), Parks and Recreation Admin, 1% Construction,

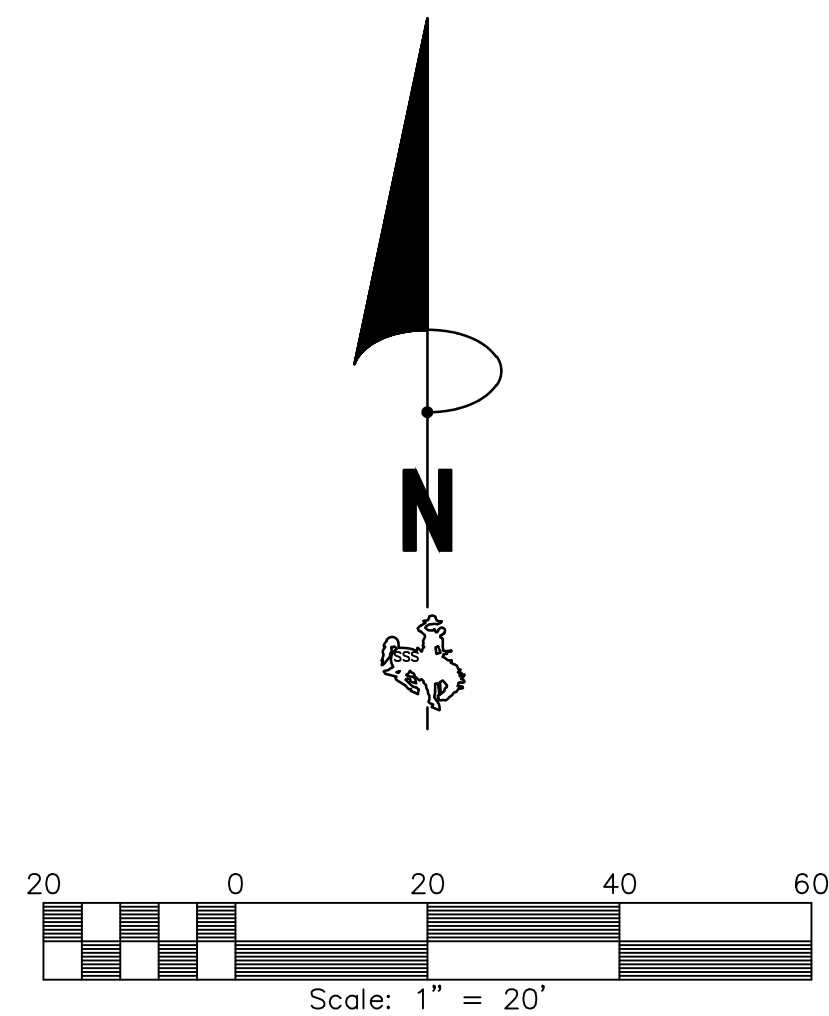
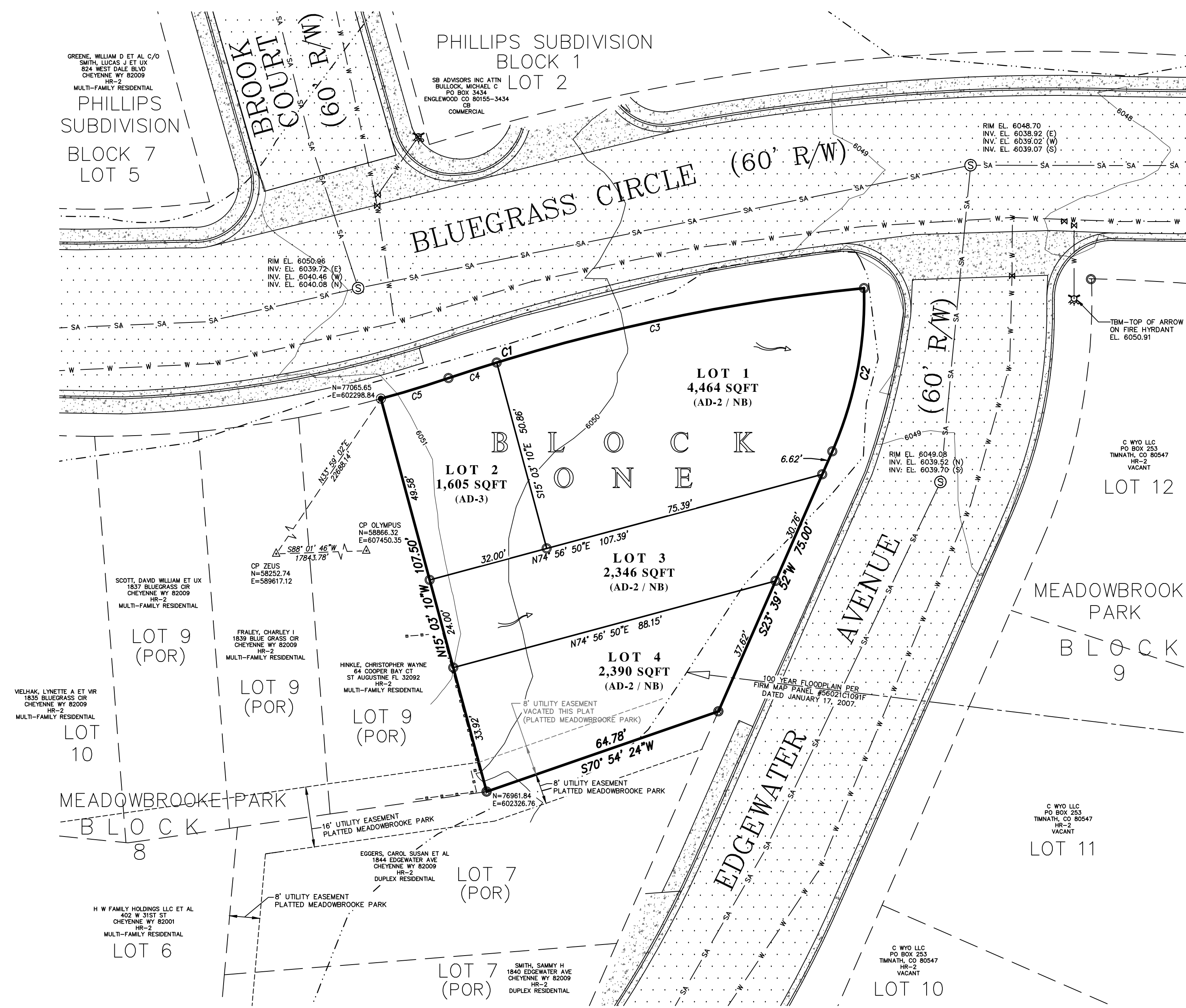
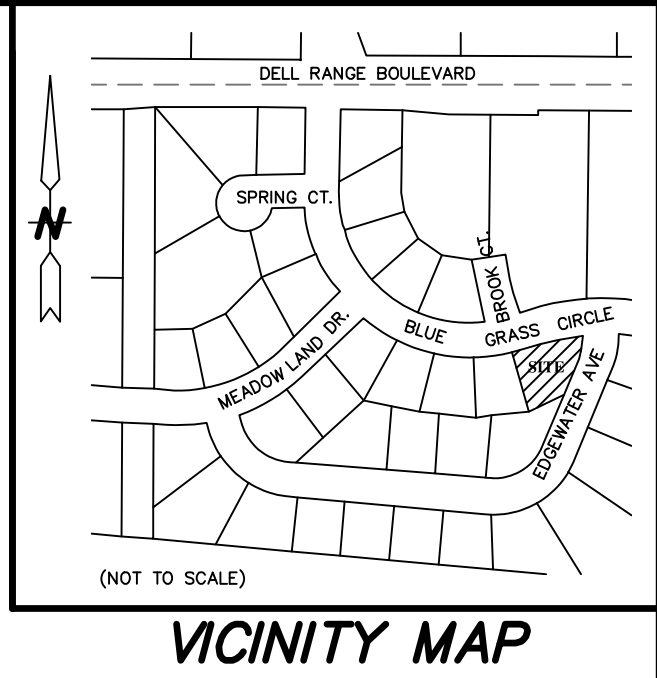
AGENCIES AND REVIEWERS NOT RESPONDING:

Police Department, Emergency Management Agency, Building, CenturyLink (formerly Qwest),
Cheyenne Light, Fuel & Power, Laramie County Clerk, Engineering Department, Laramie County
Dispatch

OTHER COMMENTS RECEIVED: None

Encl: Preliminary Plat Map
Final Plat Map
Aerial Map 1

cc: Owner
Agent/Applicant
File



- LEGEND**
- FOUND 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 2500"
 - SET 3/4" X 24" LONG REBAR WITH 1 1/2" ALUMINUM CAP STAMPED "SSS PLS 5910"
 - ⊙ FOUND 3/4" REBAR
 - (M) DENOTES MEASURED DATA THIS SURVEY
 - (P) DENOTES PLAT DATA PER MEADOWBROOK PARK
 - X SPOT ELEVATION
 - ⊕ EXISTING FIRE HYDRANT
 - ⊕ EXISTING WATER VALVE
 - ⊕ EXISTING SINGLE POST SIGN
 - ⊕ EXISTING SANITARY SEWER MANHOLE
 - EXISTING WOOD FENCE
 - EXISTING WATER LINE
 - SA EXISTING SANITARY SEWER LINE
 - EXISTING CONCRETE SURFACE
 - EXISTING BITUMINOUS SURFACE
 - PROPOSED BITUMINOUS SURFACE
 - PROPOSED CONCRETE SURFACE
 - 100-YEAR FLOODPLAIN BOUNDARY
 - EXISTING CONTOUR
 - DIRECTION OF DRAINAGE

DEDICATION

KNOW ALL PERSONS BY THESE PRESENTS THAT: Cooley Construction LLC, owner in fee simple of Lot 8, Block 8, Meadowbrooke Park, City of Cheyenne, Laramie County, Wyoming,

Has caused the same to be surveyed, vacated, replatted and known as COOLEY SUBDIVISION, does hereby declare the subdivision as it appears on this plat, to be their free act and deed and in accordance with their desires.

Cooley Construction LLC

by: _____
Dan Cooley

ACKNOWLEDGEMENT

STATE OF WYOMING)
COUNTY OF LARAMIE) SS

The foregoing instrument was acknowledged before me this _____ day of _____, 2013, by Dan Cooley, of Cooley Construction LLC.

Notary Public, Laramie County, Wyoming

My Commission Expires: _____

VACATION STATEMENT

It is the intent of this plat to vacate all previously platted lot lines and utility easements contained within this replat.

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, Registered Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

CURVE TABLE					
CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C1	13° 01' 30"	495.00'	N77° 46' 17"E	112.29'	112.53'
C2	25° 23' 02"	100.00'	S10° 58' 21"W	43.94'	44.30'
C3	11° 28' 44"	495.00'	N78° 32' 40"E	99.01'	99.17'
C4	1° 32' 46"	495.00'	N72° 01' 55"E	13.36'	13.36'
C5	3° 41' 22"	290.00'	N73° 06' 11"E	18.67'	18.67'

- NOTES**
- BASIS OF BEARINGS - CITY OF CHEYENNE DATUM REFERENCED FROM CITY CONTROL MONUMENTS "OLYMPUS" & "ZEUS".
 - A PORTION OF SUBJECT PROPERTY AS SHOWN DOES FALL WITHIN SPECIAL 100-YEAR SPECIAL FLOOD HAZARD AREA ACCORDING TO FEMA MAP NO. 56021C1091F EFFECTIVE DATE JANUARY 17, 2007.
 - NO PHASING IS PROPOSED.

LOT SUMMARY

TOTAL AREA	10,805 SF
# OF LOTS	(4)
AVGERAGE LOT AREA	2,701 SF

ZONING

EXISTING ZONING	CB
PROPOSED ZONING	MUB

OWNER:
COOLEY CONSTRUCTION, LLC
3347 HALES RANCH ROAD
CHEYENNE, WY 82007
307-635-8672

ENGINEER:
SUMMIT ENGINEERING
5907 TOWNSEND PLACE
CHEYENNE, WY 82009
307-637-0681

DEVELOPER:
COOLEY CONSTRUCTION, LLC
3347 HALES RANCH ROAD
CHEYENNE, WY 82007
307-635-8672

SURVEYOR:
STEIL SURVEYING SERVICES, LLC.
1102 WEST 19th STREET
CHEYENNE, WY 82001
307-634-7273

**PRELIMINARY PLAT
FOR
COOLEY
SUBDIVISION**

A REPLAT OF
LOT 8, BLOCK 8,
MEADOWBROOKE PARK,
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING.

Prepared April, 2013

STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS

1102 W. 19th ST. CHEYENNE, WY. 82001 (307)634-7273
756 GILCHRIST ST. WHEATLAND, WY. 82201 (307)322-9789

Dell Range Boulevard

Meadow Estates - 2004 -
6 townhome lots platted from
Lots 6 and 7, Block 6, Meadowbrooke Park
(sqft)

Aerial Map 1

- Cooley Subdivision -

Expedited Preliminary Plat and Zone Change Request

Block Perimeter = ~1500 ft

Blue Grass - (Collector)

Greenway Connector

Meadowland Drive Estates - 2002 -
4 townhome lots platted from
Lot 3, Block 8, Meadowbrooke Park
(11,687 sqft).

IS Cooperative Program

Agent and Owner: Dan Cooley

Application Number(s):
UDC-13-00160/UDC-13-00159

This map is made possible through the Cheyenne
and Laramie County Cooperative GIS (CLCCGIS)
Program and is for display purposes only. The
CLCCGIS invokes its sovereign and governmental
immunity in allowing access to or use of this data

Platted Info



1 in = 150 ft



Meadowbrooke Park - Generally (south of Dell Range)

Frontier Mall PUD

DELL RANGE

RUE TERRE

SPRING

NB

STILLWATER

MEADOWLAND

BROOK

BLUEGRASS

CB

EDGEWATER

HR-2

Airport AD

Collector Road
(Purple)

